



Human Resources Policy

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Contents

Preamble	4
Purpose and Scope	4
General Principles	5
Working Conditions.....	5
Conflict of Interest	7
Recruitment.....	7
ANNEX 1	10
ANNEX 2	11

Document history/Change log

Version	Date	Amended by	Change/s made
1			
2			
3			

LIST OF ABBREVIATIONS

BNN	Board of National Nodes
CSP/STE	Concentrating Solar Power / Solar Thermal Energy
ERIC	European Research Infrastructure Consortium
GA	General Assembly
IPR	Intellectual property rights
MD	Managing Director
RI	Research Infrastructure
STC	Scientific & Technical Committee
SLA	Service Level Agreement

Preamble

Having regard to Council Regulation (EC) No 723/2009 of 25 June 2009 on the Community legal framework for a European Research Infrastructure Consortium (ERIC), and in particular Article 7 (3).

Having regard to the Commission Implementing Decision (EU) 2022 /7351 of 19 October 2022 setting up the European Solar Research Infrastructure for Concentrated Solar Power, known as EU-Solaris ERIC.

Having regard to Council Directive 89/391/EEC of 12 June 1989 on the introduction of measures to encourage improvements in the safety and health of workers at work (<https://eur-lex.europa.eu/legal-content/EN/ALL/?uri=CELEX:31989L0391>).

Having regard to REGULATION (EU) 2016/679 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (<http://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX:32016R0679>).

Having regard to Sustainable European Research. Commission staff working document (https://ec.europa.eu/research/infrastructures/pdf/swd-infrastructures_323-2017.pdf#view=fit&pagemode=none).

Having regard to the European Charter for Researchers The Code of Conduct for the Recruitment of Researchers (https://www.euraxess.at/sites/default/files/am509774cee_en_e4.pdf).

and

Whereas:

EU-Solaris ERIC deems it beneficial to regulate employment to uphold principles such as transparency, equal opportunity, non-discrimination, and un-biased evaluation.

The General Assembly of EU-Solaris ERIC has enacted these employment regulations.

Purpose and Scope

1. This policy outlines the fundamental principles governing the relationship between EU-Solaris ERIC and its employees. It is designed to uphold uniform standards and ensure consistent employment practices and staff relations.
2. This policy applies to all employees of EU-Solaris ERIC.
3. Additionally, this policy is intended to complement the relevant Spanish legislation.
4. In the event of any inconsistency between this policy and applicable national law, the latter shall take precedence.

General Principles

As a general statement, the General Assembly will take decisions about the opening of first-level staff positions or on the designation of seconded personnel, while the Managing Director (MD) has the authority to select the staff of the Central Hub.

That being said, the general principles to which EU-Solaris ERIC will adhere concerning the

1. Transparency and Efficiency:

EU-Solaris ERIC adheres to principles of transparency and efficiency in the selection, recruitment, and employment processes of its staff.

Decisions are made based on clear, openly stated procedures and criteria. The outcomes with justifications are accessible to all EU-Solaris ERIC staff. Personal privacy shall, however, be respected and must not be infringed.

2. Non-discrimination and Equal Opportunities:

We are dedicated to fostering a diverse and inclusive workplace culture. Discrimination based on gender, age, ethnicity, nationality, social origin, religion or belief, sexual orientation, language, disability, political opinion, or socioeconomic status is strictly prohibited.

3. Diversity and Talent Development:

EU-Solaris ERIC actively seeks to recruit, develop, and retain talented individuals from diverse backgrounds and origins to drive innovation and success.

Descriptions of positions to work for EU-SOLARIS should be clear and available equally and show as much as possible perspective of career development possibilities in order to make it attractive to work for EU-Solaris ERIC.

EU-Solaris ERIC promotes training and mentoring in order to get new kind of expertise that is needed in distributed research infrastructures.

4. Equal Treatment and Opportunity:

All members of the EU-Solaris ERIC staff are entitled to equal respect and opportunities to contribute fully based on their individual skills and interests.

5. Management at Statutory Seat in Spain:

Employees stationed at the EU-Solaris ERIC's Central Hub seat in Spain are appointed, dismissed, and report to the Managing Director (MD) according to established procedures.

Working Conditions

1. Adherence to Standards and Practices:

All practices shall be based upon internationally recognised labour standards, applicable national laws, regulations, collective agreements, industry standards and national customs. Applicable national legislation shall always take precedence.

European and national legislation as applicable regarding the protection of personal data and privacy as well as health and safety at work shall be respected.

EU-Solaris ERIC promotes personnel's wellbeing at workplaces so that people stay healthy and do not get overloaded by work duties

2. Performance and Alignment with Objectives:

Employees are expected to execute their duties to the utmost of their abilities, actively promoting EU-Solaris ERIC's objectives and values in their daily tasks and interactions with external stakeholders.

3. Compliance and Consideration:

Employees are obliged to adhere to directives provided by their line managers, executing their responsibilities with precision and mindfulness, taking into consideration the well-being of their colleagues.

EU-Solaris ERIC should be able to rely on people to perform their duties well and follow any policies and rules accepted for EU-Solaris ERIC.

4. Flexibility and Accommodation:

Working conditions, including those for employees with disabilities, shall offer necessary flexibility conducive to successful task completion, in accordance with prevailing national legislation and relevant collective bargaining agreements.

5. Work-Life Balance:

EU-Solaris ERIC endeavours to facilitate a work environment that enables both women and men to effectively balance familiar responsibilities with their careers. This includes provisions for flexible working hours, part-time arrangements, telecommuting, and leave, complemented by appropriate financial and administrative support mechanisms.

6. Fair and Attractive Employment Conditions:

Employees are entitled to fair and appealing employment conditions, underpinned by adequate social security provisions in compliance with applicable national regulations and collective bargaining agreements.

7. Equality and Respect:

All EU-Solaris ERIC employees are to be treated with equal respect, with every opportunity provided for them to contribute fully to the organization's success based on their unique skills, competencies, and interests.

EU-Solaris ERIC promotes equality and any kind of discrimination based on gender, age, health, disability, national or ethnic origin, nationality, sexual orientation, language, religion, opinion, belief, family ties, trade union activity, political activity or any other comparable circumstance should be prohibited.

EU-Solaris ERIC promotes accessibility to workplaces. Accessibility means the physical, psychological and social environment should be organised to ensure that everyone has an equal opportunity to participate in the community, regardless of personal characteristics.

8. Safety and Health:

EU-Solaris ERIC is committed to offering a secure and healthy work environment, striving for the prevention of work-related accidents and injuries, and continually enhancing health and safety standards in the workplace.

9. Prohibition of Inappropriate Behaviour:

All forms of inappropriate behaviour, including but not limited to harassment, bullying, psychological abuse, and violence, are strictly prohibited. Further details regarding acceptable conduct will be outlined in the EU-Solaris ERIC Code of Conduct.

Inappropriate treatment of people should not be allowed or tolerated. Inappropriate treatment includes repeated humiliation and insulting, limiting social interaction, not speaking to or returning

a greeting to a person, casting aspersions or spreading gossip about a person, or ridiculing a person, denying a person certain work assignment or assigning him/her assignments that are below his or her qualifications, and threats of physical violence

10. Equitable Treatment:

All staff, including secondees and consultants, shall be treated equitably, fairly, and respectfully by EU-Solaris ERIC employees and management. Immediate and appropriate action shall be taken by management upon awareness of any instances of inappropriate behavior.

11. Substance-Free Workplace:

The possession, distribution, consumption, or working under the influence of unlawful controlled substances while on EU-Solaris ERIC premises or during EU-Solaris ERIC activities is strictly prohibited.

Conflict of Interest

1. Professional Loyalty:

Every employee's primary allegiance shall be to EU-Solaris ERIC. Decisions made in the course of business or organizational activities must prioritize the best interests of EU-Solaris ERIC, devoid of personal or external influences.

2. Honesty and Integrity:

Employees of EU-Solaris ERIC are expected to uphold principles of honesty and integrity. They should refrain from engaging in situations where personal, familiar, or financial interests may conflict with those of EU-Solaris ERIC.

3. Anti-Corruption Commitment:

EU-Solaris ERIC is dedicated to combating corruption in all its manifestations, including acts of extortion and bribery.

EU-Solaris ERIC works against corruption in all its forms, including extortion and bribery. No one working for EU-Solaris ERIC (or a family member, or relative or friend of a person working for EU-Solaris ERIC acting with his/her knowledge) should in any circumstances offer, promise, give, receive or demand an illegal or improper payment or benefit, bribe or any other undue advantage from or to a third party that could affect or appear to affect objectivity and fairness in business decisions. People working for EU-Solaris ERIC should at all times use their good judgement to avoid creating the appearance of improper payments and other inappropriate benefits

Recruitment

1. Compliance with Employment Laws:

EU-Solaris ERIC, in general terms, is governed by the Spanish "Worker's Statute", however, the recruitment and selection processes for employees shall adhere to relevant employment legislation of the Country in which the employee works.

"The Spanish Collective Bargaining Agreement for Engineering" is the one that applies to EU-Solaris ERIC employees, in this agreement the workers can see their rights and obligations as employees.

2. Diversity and Non-discrimination:

EU-Solaris ERIC is dedicated to fostering a diverse and inclusive workplace, free from discrimination.

3. Gender Balance:

EU-Solaris ERIC shall strive for gender balance representation across all staff levels. This objective is pursued through equal opportunity recruitment practices and subsequent career advancement stages, without compromising on quality and competence criteria. Selection and evaluation committees are encouraged to maintain adequate gender balance to ensure fair treatment.

All these criteria adhere to the Gender Equality Plan of EU-Solaris ERIC.

4. Recruitment Procedure Details:

Specific procedures pertaining to the recruitment and selection of personnel are detailed in Annex 1.

5. Confidentiality and Data Protection:

All documentation related to personnel employment shall be handled confidentially and in compliance with the European General Data Protection Regulation (GDPR) and relevant national laws.

EU-SOLARIS ERIC BYLAWS

Any inquiries regarding the rights and obligations of the workers must be made in the **Collective Bargaining Agreement for Engineering Companies**. In case of discrepancy between the agreement and this document, the conditions stipulated in the agreement will prevail, provided that the latter are more favourable. For further information, consult the official document, as EU-Solaris ERIC follows Spanish labour legislation (Worker's Statute).

Paid Leave Policy for EU-Solaris ERIC Employees

Employees at EU-Solaris ERIC are entitled to 23 paid working days of annual leave. If additional days are needed, arrangements can be made between the employee and the director.

EU-Solaris ERIC employees can enjoy 6 days of personal leave annually are those in which the worker can be absent from work for personal reasons without the need to justify it.

Remote Work Policy for EU-Solaris ERIC Employees

Remote work at EU-Solaris ERIC, as regulated by law, is voluntary for both employees and the organization. Employees must obtain approval from the EU-Solaris ERIC director for remote work arrangements.

Sick leave Policy for EU-Solaris ERIC Employees

For sick leave of less than 4 days, a doctor's note will suffice. However, if the sick leave extends beyond 4 days, an official medical sick leave certificate from a doctor is required. In both cases, employees must provide a justifying certificate.

Additionally, female employees experiencing difficulties due to their menstrual cycle may take sick leave upon the advice of their doctor.

If a female employee prefers to work remotely during her menstrual cycle, she must obtain permission from the director of EU-Solaris ERIC.

Working Hours and Breaks Policy for EU-Solaris ERIC Employees

Employees are required to check in at 8:30 and check out at 16:30 from Monday to Friday.

A 30-minute lunch break is to be taken daily, to be scheduled at the discretion of the employee. This results in a total working day of 7.5 hours per day.

Code of Conduct for EU-Solaris ERIC Employees

- **Respect for Company Resources:** Employees are expected to exercise care and diligence when using company resources and premises. Any damage caused will be subject to consequences as determined by the Director.
- **Smoking Policy:** Smoking is only permitted in designated smoking areas.
- **Respectful Interactions:** Mutual respect among coworkers is essential. Any conflicts should be handled with professionalism and respect. Employees are encouraged to report any conflicts or issues to the EU-Solaris ERIC Director for resolution.

FINAL PROVISIONS

- 1) This policy shall undergo review by the General Assembly at least once every five years from the date of its adoption.
- 2) The MD may propose changes or amendments to this policy to the Chairperson of the General Assembly at any time. Proposed changes shall be subject to voting.
- 3) This policy shall become effective on the day following its adoption by the General Assembly.
- 4) Any inquiries regarding the rights and obligations of the workers must be made in the **Spanish Collective Bargaining Agreement for Engineering Companies**. In case of discrepancy between the agreement and this document, the conditions stipulated in the agreement will prevail, provided that the latter are more favourable. For further information, consult the official document, as EU-Solaris ERIC follows Spanish labour laws¹.

¹ [https://www.boe.es/eli/es/res/2023/02/27/\(6\)/dof/spa/pdf](https://www.boe.es/eli/es/res/2023/02/27/(6)/dof/spa/pdf)

ANNEX 1

RECRUITMENT PROCEDURE

Advertisement of Positions

All new and vacant positions within EU-Solaris ERIC shall be widely advertised through appropriate channels and posted on the website. Advertisements shall be published with 15 days in advance to allow potential candidates ample opportunity to become aware of the opportunity and prepare their applications.

Internally, a report of needs for the posted vacant positions, will be prepared.

Criteria for Selection

Advertisements shall include a clear description of the position and selection criteria, encompassing required skills, experience, knowledge, motivation, and other pertinent requirements. These criteria must be directly relevant to the advertised role and position, devoid of any discriminatory factors based on race, ethnicity, national origin, religion, gender, age, disability, sexual orientation, political affiliation, marital status, or parental status.

Formation of a Selection Panel

The MD will seek the support of a selection panel comprising additional experts to assess the need for the vacant and interview and assess the candidates submitted, nevertheless, the final decision about the best candidate for recruitment will remain on the MD.

Application Review and Shortlisting

All applications will be reviewed and a shortlist of candidates to be invited for an interview will be set up. Shortlisting shall be based on the advertised criteria, taking into account any affirmative action plans regarding gender balance previously approved in accordance with the Statutes.

Interview Phase

Following interviews to the shortlisted candidates, a written report will be compiled, including candidate rankings, supported by narrative feedback and a recommendation for the successful candidate, which, to all intents and purposes, shall be a record of the completion of the proceedings (Final Selection Report).

Decision and Offer of Employment

The validity of the candidate's selection will be for a maximum of three months from the issuance of the final selection report.

The MD shall be reserved the right to cancel the recruitment procedure in the event of supervening events that alter the initial circumstances of the procedure.

The MD shall decide whether to extend an employment contract to the successful candidate.

The MD will report to the General Assembly before finalizing the offer of employment.

ANNEX 2

CONFIDENTIALITY AND CONFLICT OF INTEREST

1. **Confidentiality**

- Definition: "Confidential Information" refers to any non-public information disclosed by EU-Solaris ERIC to its employees during collaboration.
- Obligations: Employees agree to maintain confidentiality and use Confidential Information solely for the intended purpose. Disclosure to third parties requires written consent.
- Exceptions: Confidentiality does not apply to publicly known information, independently developed data, or legally required disclosures.
- Duration: Obligations persist beyond termination or expiration for the contract's period.

2. **Conflict of Interest**

- Definition: "Conflict of Interest" arises when employees' personal interests compromise performance integrity.
- Disclosure: Employees must promptly disclose conflicts of interest to EU-Solaris ERIC in writing.
- Resolution: EU-Solaris ERIC and employees collaborate to resolve conflicts in good faith, ensuring performance integrity.

3. **Execution:** Effective upon authorized board's signatures.